

THORNFIELD DEPARTMENT OF ENVIRONMENTAL QUALITY
OFFICE OF REGULATORY COMPLIANCE

ACQUISITION OF 88 WESTBROOK PLAZA, CALDWELL CITY, TX 77036
NOTICE OF VIOLATION AND ORDER TO COMPLY

TRANSACTION REFERENCE: ACQ-2024-PSL-0087
Notice No.: TEQ-NOV-2024-1187 Crow Services LLC

Date Issued: August 5, 2024/2024

Buyer: Westbrook Commercial Holdings LLC

TO: Mr. Alcott-Meridian Properties Inc.

Pinnacle Chemical Manufacturing Co.

Attention: Mr. Stewart G. Albrecht, Chief Compliance Officer
3300 Refinery Road
Port Caldwell, TX 77530

RE: NOTICE OF VIOLATION -- THORNFIELD CLEAN AIR ACT, CHAPTER 382
FACILITY PERMIT NO. AIR-2019-4422

[X] 1. Preliminary Title Report

Received: Oct 10, 2024

FINDINGS OF VIOLATION (Seller)

Received: Oct 11, 2024

[] 3. Seller's Statement of Title

PENDING -- due Oct 22, 2024

Pursuant to an inspection conducted on July 18, 2024, by Compliance Officer 4
Renata Okonkwo (Inspector ID: TEQ-CO-0091), the Thornfield Department of
Environmental Quality ("Department") has determined that Pinnacle Chemical
Manufacturing Co. ("Facility" or "Respondent") has committed the following
violations at the above-referenced facility:

VIOLATION 1: Excess Volatile Organic Compound (VOC) Emissions
During the inspection period of July 14-18, 2024, continuous emissions monitoring
data recorded VOC emissions from Stack 4-B of 148 parts per million (ppm) on
a rolling 24-hour average basis. This exceeds the permitted limit of 85 ppm
established in Permit Condition 3.4.1 by 74.1%. This constitutes a violation of
Thornfield Clean Air Act Section 382.085(b). Received: Oct 2, 2024

[] 10. Buyer Entity: Resolution Authorizing Purchase MISSING -- to be provided
VIOLATION 2: Incomplete Quarterly Emissions Report
Respondent failed to submit the Quarterly Emissions Report for Q2 2024 (April-June
2024), which was due on July 31, 2024. This constitutes a violation of Thornfield
Clean Air Act Section 382.141(a) and Permit Condition 6.1.2. requested Oct 12

VIOLATION 3: Deficient Stack Monitoring Equipment
Portable opacity monitor OM-7 was found to be operating with a calibration
certificate expired on March 31, 2024. Data collected by OM-7 since that date is
presumed unreliable. This constitutes a violation of Thornfield Clean Air Act
Section 382.162 and Permit Condition 5.3.1. Received: Sept 28, 2024

[X] 15. Loan Commitment Letter -- Horizon Bank NA Received: Oct 7, 2024
REQUIRED CORRECTIVE ACTIONS AND DEADLINES -- expected Oct 20

[] 17. Deed of Trust -- Horizon Bank NA Received: Oct 7, 2024
The Department hereby orders Respondent to: expected Oct 25
[] 19. Closing Disclosure (HUD-1 equivalent) Received: Sept 30, 2024
PENDING -- expected Oct 25

ACTION 1: IMMEDIATE -- within 48 hours of receipt of this Notice
Reduce VOC emissions from Stack 4-B to at or below the permitted limit of 85 ppm.
Provide written confirmation of corrective action to the Department by email to
compliance@teq.thornfield.gov, Attention: NOV Case Manager.

SECTION D -- DUE DILIGENCE DOCUMENTS

ACTION 2: WITHIN 14 DAYS -- By August 19, 2024

Submit the overdue Q2 2024 Quarterly Emissions Report in full compliance with
Section 382.141(a) using the Department's eDEQ online reporting portal
(portal.teq.thornfield.gov). Late submission penalties may apply pursuant to
Thornfield Administrative Code Section 7.048. inspector scheduled
Oct 18, 2024; report expected Oct 25, 2024

ACTION 3: WITHIN 30 DAYS -- By September 4, 2024 Received: Oct 10, 2024

(a) Recalibrate or replace portable opacity monitor OM-7 and provide to the
Department a copy of the new calibration certificate from an accredited
laboratory; tenants: Unit 4B (Greystone Consulting) and Unit 6A (open)

(b) Submit a Data Quality Assessment Report covering the period April 1 -
August 5, 2024, identifying any monitoring data affected by the deficient
instrument and proposing substitute data or corrective estimates in due from Seller

RECEIVED
OCT 2024